The Court finds that Defense counsel's declaration of meet and confer was essentially made in bad faith. By acknowledging a resolution had been reached on July 15 while simultaneously filing a motion on July 16 to compel that same appearance, Defendants sought to use the Court's calendar as a tool for intimidation and leverage. Preemptive or "placeholder" motions are an improper discovery practice and place an unnecessary burden on judicial resources. Defense counsel is formally admonished, the preemptive filing of this motion after a resolution had already been achieved, or the use of the Court's jurisdiction to "police" potential future non-compliance is an abuse of the discovery process. (CCP §2023.010.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505749	SAYRE VS SUDWEEKS CONSTRUCTION, INC.	MOTION TO COMPEL FURTHER RESPONSE TO REQUEST FOR PRODUCTION, SET ONE FROM DEFENDANT SUDWEEKS CONSTRUCTION FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling: Plaintiff's Motion to Compel Further Response to Request for Production of Documents (Set One) No. 17 is granted; Defendant Sudweeks Construction, Inc. must produce further, verified, Code-compliant responses, without objection, to Request for Production of Documents No. 17 within 30 days of this order.

As to Sanctions, Plaintiff is awarded AGAINST Defendant Sudweeks in the reasonable reduced amount of $1,560.00 (3 hours at $550/hour and filing fees), payable within 30 days.

A party may move to compel a further response to an RFP where the responding party's statement of compliance is incomplete, a representation of inability to comply is inadequate, or "an objection in the response is without merit or too general." (CCP § 2031.310(a).) The moving party must "set forth specific facts showing good cause justifying the discovery sought by the demand." (CCP § 2031.310(b)(1).) Once the moving party makes a fact specific showing of relevance, good cause is established, and the burden shifts to the responding party to justify each objection. (*Kirkland v. Sup. Ct.* (2002) 95 Cal.App.4th 92, 98.)

Plaintiff has met his threshold burden of showing good cause. RFP No. 17 targets the very documents that establish the elements of Plaintiff's prevailing wage claims—*i.e.*, the contract coverage requirement under Lab. Code §§ 1771 and 1774, the bid advertisement date that fixes the applicable prevailing wage determination, and trade classification and damages. That is a "fact-specific showing of relevance," which satisfies the good cause requirement and shifts the burden to Sudweeks to justify each of its objections. (*Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Sudweeks has not carried that burden. Its March 2, 2026 response consisted entirely of boilerplate objections, including relevance, overbreadth, third-party privacy, confidentiality, “no compelling need,” and burden, with no statement of compliance and no agreement to produce. (Donahoo Decl. ¶ 4, Ex. 2.) Sudweeks’ opposition does not substantively defend the objections asserted in its March 2, 2026 response. No burden declaration, no privilege log, and no specific privacy or proprietary interest is identified in the opposition papers. Well-established authority also recognizes that corporations have, at most, a lesser right of privacy than natural persons and cannot claim equality with individuals in the enjoyment of that right. (*Roberts v. Gulf Oil Corp.* (1983) 147 Cal.App.3d 770, 795–96.)

To the extent confidentiality remains a concern, the stipulated protective order Plaintiff offered would appear adequate to address it. Sudweeks’ ultimate production of 362 pages of contract material in a single supplemental response on July 24, 2026 further indicates that the documents can, in fact, be located and produced, which undermines the boilerplate objections that were originally interposed. Good cause is therefore established, and Sudweeks’ objections are overruled.

Mootness
Sudweeks argues that the July 24, 2026 production, together with the pre-motion summary spreadsheet identifying bid dates, contract dates, and bond information, moots the motion. That argument fails for three reasons.

First, Sudweeks produced nothing responsive to RFP No. 17 until three weeks after Plaintiff filed the motion, and roughly seven months after service of the request. Under *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, post-filing production does not deprive the Court of authority to rule on the motion or to award fees where the motion appears to have been the catalyst for the production. (*Id.* at 409.) Denying as moot on this record would reward the belated compliance and effectively penalize Plaintiff for filing the motion that produced the documents.

Second, the supplemental response is not fully Code-compliant. Rather than an unqualified statement of compliance under CCP § 2031.220, it produces documents “[s]ubject to and without waiving the foregoing objections.” (Channah Decl. ¶ 17, Ex. B.) That conditional, objection-preserving formulation leaves the response “incomplete” and preserves objections that appear “without merit or too general”—the very defects section 2031.310(a) authorizes the Court to correct. (CCP § 2031.310(a).) Plaintiff is therefore entitled to a further, verified response that states unqualified compliance and withdraws the previously asserted objections.

Third, neither of Sudweeks’ productions cures the underlying deficiency in its response to RFP No. 17. The June 24, 2026 one-page spreadsheet identifies only “the bid dates for those projects applicable to bids, bond surety companies, bond amounts, and contract dates.” (Channah Decl. ¶ 12.) That summary data cannot establish the specific contractual terms—scope of work, incorporated general and special conditions, identity of awarding bodies, and bid advertisement dates—needed to prove contract coverage, trade classification, and damages under the prevailing wage statutes.

As to the July 24, 2026 supplemental production, while it consists of contract materials, Sudweeks unilaterally redacted portions of those documents without producing a privilege log or otherwise justifying the redactions in its response. (*Id.* at ¶ 17, Ex. B.) Sudweeks explains that the redactions concern bond information it views as responsive to RFP No. 20 rather than RFP No. 17, but that explanation does not resolve the deficiency. In any event, CCP § 2031.240(b) provides that when a party objects to producing part of an item, the response must "[i]dentify with particularity any document . . . falling within any category of item in the demand to which an objection is being made" and "[s]et forth clearly the extent of, and the specific ground for, the objection." (CCP § 2031.240(b)(1)–(2).) Sudweeks' response does neither. The motion therefore is not moot.

SANCTIONS
CCP § 2031.310(h) requires the Court to impose a monetary sanction on any party or attorney who unsuccessfully opposes a motion to compel a further response, unless the Court finds that the party acted with substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.310(h).) A responding party's belated, post-motion production does not automatically moot a motion to compel or foreclose a sanctions award; the Court retains discretion to grant the motion and award fees where the belated production appears to have been prompted by the filing itself. (*Sinaiko*, *supra*, 148 Cal.App.4th at 409.)

Sudweeks did not act with substantial justification. Its objections were unsupported by any declaration, privilege log, or identified privacy or proprietary interest, and it produced the responsive contracts only after Plaintiff filed the motion. Monetary sanctions in favor of Plaintiff are therefore appropriate.

Plaintiff requests $3,360.0; Plaintiff's counsel declares an hourly rate of $825, based on more than 29 years of practice with particular expertise in prevailing wage claims under Lab. Code § 1770 *et seq.*, and reports four (4) hours on this motion—2.5 hours preparing the motion, memorandum, declaration, and separate statement; 1 hour on the reply; and 0.5 hour for the hearing—plus a $60 filing fee. (Donahoo Decl. ¶ 11.) Court awards $1,560.00 (3 hours at $550/hour and filing fees).

Sudweeks' cross-request for $4,810.00 is denied. Sudweeks did not comply with section 2023.040, which requires a separate notice of motion identifying the persons against whom sanctions are sought. (CCP § 2023.040.) In any event, Sudweeks, not Plaintiff, is the party who unsuccessfully opposed the motion within the meaning of section 2031.310(h), and is therefore the party subject to sanctions.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2601231	THOITS VS OREMOR OF RIVERSIDE GM LLC	DEMURRER

Tentative Ruling: Defendant's Demurrer is overruled.

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (20040 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of